

# MASTER SERVICES AND REIMBURSEMENT AGREEMENT

Executed as a deed. No tables are used in this instrument.

Contract number: INS-H2-2024-1183

Provider: St. Auben Metropolitan Hospital Trust

Payer: Meridian Health Assurance Group

Effective from: 1 January 2024

Effective to: 31 December 2025

Currency: GBP

Rounding convention: half\_up\_cent

## ARTICLE I — RECITALS AND TERM

1.1 This Agreement is made between Meridian Health Assurance Group (the "Payer") and St. Auben Metropolitan Hospital Trust (the "Provider").

1.2 This Agreement takes effect on 1 January 2024 and, unless terminated earlier in accordance with its terms, expires on 31 December 2025.

1.3 The Provider delivers the Services from Main Campus (F-MAIN). No facility differential applies under this Agreement, and the rates set out in the Articles below apply irrespective of the Patient's plan tier.

1.4 The rates for individual Services are not gathered into a single schedule. Each rate appears in the Article in which the relevant Service is described, and the Articles are not ordered by clinical speciality.

## ARTICLE II — DEFINITIONS AND INTERPRETATION

2.1 In this Agreement the following expressions have the following meanings.

2.2 "Service Day" means the period of twenty-four (24) hours commencing at 07:00 hours and concluding at 06:59 hours on the following calendar day. A Service delivered wholly within a single calendar day is delivered on the Service Day bearing that calendar date.

2.3 "Service Date" means the date recorded against a line item on the Provider's invoice in respect of the Service to which that line item relates.

2.4 "Business Day" means a Service Day which commences on a day other than a Saturday or a Sunday.

2.5 "Episode of Care" means the continuous period beginning with a Patient's admission and ending with that Patient's discharge, including any period of leave of absence of less than forty-eight (48) hours. An Episode of Care may span more than one Service Day and more than one calendar month.

2.6 "Unit" means one billable unit of a Service on the unit basis stated for that Service in the Article in which its rate appears.

2.7 "Cumulative utilisation" means the running total of Units of a Service billed under this Agreement, taken in Service Date order, up to but excluding the line item being priced.

2.8 References to an Article are references to an Article of this Agreement. Headings are for convenience only and do not affect construction.

## ARTICLE III — CALCULATION CONVENTIONS

3.1 All monetary amounts are expressed in whole cents. Where the application of a multiplier, premium or discount produces a fraction of a cent, the result shall be rounded to the nearest whole cent, with exact halves rounded away from zero ("half up"). Rounding is applied after each individual step of the calculation, not once at the end.

3.2 Where more than one adjustment applies to the same Service, the adjustments shall be applied to the base rate strictly in the following order: (a) substitution of a bundled rate; (b) the facility multiplier; (c) the plan-tier multiplier; (d) any premium or uplift; and (e) any cumulative volume discount. The line total is then the resulting unit rate multiplied by the billed quantity.

3.3 The line total for a line item is the effective unit rate for that line item multiplied by the quantity billed. The invoice total is the arithmetic sum of the line totals appearing on that invoice, and no other amount.

3.4 A threshold expressed by reference to a Service Day is assessed against the aggregate quantity of the Service delivered to the Patient on that Service Day, and not against the quantity appearing on any single line item.

3.5 A cumulative volume discount applies to a line item where cumulative utilisation of the Service prior to that line item exceeds the stated threshold. Utilisation is counted in Service Date order, and where two line items share a Service Date they are counted in ascending order of line identifier. Where more than one threshold has been exceeded, the deeper discount

applies and the discounts are not compounded.

3.6 An exclusion window is measured in either direction from the Service Date of the Service which is excluded.

## **ARTICLE IV — CONTRACTED SERVICES (ONE GROUP)**

4.1 In respect of Advanced Infectious Isolation Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 1,648.25 per day of service. The Provider shall not bill more than twenty-four (24) days of this Service for a Patient on a single Service Day. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Advanced Infectious Isolation Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

4.2 In respect of Assisted Infectious Telemetry Monitoring, the Provider shall invoice the Payer at the rate of GBP 106.25 per hour, per item. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Assisted Infectious Telemetry Monitoring, and shall not present it under a description that identifies a different contracted Service.

4.3 In respect of Comprehensive Otolaryngologic Case Conference, the Provider shall invoice the Payer at the rate of GBP 165.25 per visit. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Comprehensive Otolaryngologic Case Conference, and shall not present it under a description that identifies a different contracted Service.

4.4 In respect of Emergency Renal Infusion Therapy, the Provider shall invoice the Payer at the rate of GBP 59.25 per hour. Where the Service Date of this Service does not fall on a Business Day, the rate applicable to it shall be increased by twelve percent (12%). Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Emergency Renal Infusion Therapy, and shall not present it under a description that identifies a different contracted Service.

4.5 In respect of Focused Palliative Recovery Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 527.75 per night of occupancy. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds twelve (12) nights, the rate applicable to that Service Day shall be increased by thirty percent (30%). The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Focused Palliative Recovery Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

4.6 In respect of Intensive Otolaryngologic Rehabilitation Programme, the Provider shall invoice the Payer at the rate of GBP 972.00 per day of service. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intensive Otolaryngologic Rehabilitation Programme, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE V — NOTICES AND COMMUNICATIONS**

5.1 Each notice under this Agreement shall be delivered in writing to the address most recently notified by the receiving Party.

5.2 No notice shall be treated as effective for the purposes of this Agreement unless it is delivered in writing to the address most recently notified by the receiving Party, and the Party relying on it bears the burden of demonstrating that it was.

5.3 Where a notice is delivered in writing to the address most recently notified by the receiving Party, the Parties shall each act

reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

5.4 The Parties acknowledge that a notice which is not delivered in writing to the address most recently notified by the receiving Party may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

5.5 For the avoidance of doubt, nothing in this Article requires a notice to be delivered in writing to the address most recently notified by the receiving Party where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

5.6 Each notice under this Agreement shall be treated as received on the next Business Day where delivery occurs after 17:00 hours.

5.7 No notice shall be treated as effective for the purposes of this Agreement unless it is treated as received on the next Business Day where delivery occurs after 17:00 hours, and the Party relying on it bears the burden of demonstrating that it was.

5.8 Where a notice is treated as received on the next Business Day where delivery occurs after 17:00 hours, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

5.9 The Parties acknowledge that a notice which is not treated as received on the next Business Day where delivery occurs after 17:00 hours may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

5.10 For the avoidance of doubt, nothing in this Article requires a notice to be treated as received on the next Business Day where delivery occurs after 17:00 hours where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

5.11 Each notice under this Agreement shall be copied to the contract manager nominated by each Party.

5.12 No notice shall be treated as effective for the purposes of this Agreement unless it is copied to the contract manager nominated by each Party, and the Party relying on it bears the burden of demonstrating that it was.

5.13 Where a notice is copied to the contract manager nominated by each Party, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

5.14 The Parties acknowledge that a notice which is not copied to the contract manager nominated by each Party may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

5.15 For the avoidance of doubt, nothing in this Article requires a notice to be copied to the contract manager nominated by each Party where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE VI — CONTRACTED SERVICES (TWO GROUP)**

6.1 In respect of Intermittent Ophthalmic Anaesthesia Administration, the Provider shall invoice the Payer at the rate of GBP 3,919.50 per procedure. Where the Service Date of this Service does not fall on a Business Day, the rate applicable to it shall be increased by twenty percent (20%). The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intermittent Ophthalmic Anaesthesia Administration, and shall not present it under a description that identifies a different contracted Service.

6.2 In respect of Postoperative Orthopaedic Isolation Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 1,204.75 per night of occupancy. Where this Service and Bedside Obstetric Physiotherapy Session are both delivered to the same Patient on the same Service Day, the two shall be billed as a bundle, this Service at GBP 903.50 per night of occupancy and Bedside Obstetric Physiotherapy Session at GBP 52.00 per hour, in substitution for their standalone rates. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Postoperative Orthopaedic Isolation Room Occupancy, and shall not present it under a description that identifies a different

contracted Service.

6.3 In respect of Preoperative Vascular Imaging Interpretation, the Provider shall invoice the Payer at the rate of GBP 91.00 per test. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Preoperative Vascular Imaging Interpretation, and shall not present it under a description that identifies a different contracted Service.

6.4 In respect of Specialist Psychiatric Sterilisation Service, the Provider shall invoice the Payer at the rate of GBP 2,137.00 per procedure. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Specialist Psychiatric Sterilisation Service, and shall not present it under a description that identifies a different contracted Service.

6.5 In respect of Supervised Haematology Biopsy Procedure, the Provider shall invoice the Payer at the rate of GBP 208.00 per item supplied. Where the Service Date of this Service does not fall on a Business Day, the rate applicable to it shall be increased by twenty percent (20%). The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Supervised Haematology Biopsy Procedure, and shall not present it under a description that identifies a different contracted Service.

6.6 In respect of Advanced Dermatologic Specimen Analysis, the Provider shall invoice the Payer at the rate of GBP 221.50 per item supplied. The Provider shall not bill more than twenty-four (24) items of this Service for a Patient on a single Service Day. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Advanced Dermatologic Specimen Analysis, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE VII — RECORDS AND RETENTION**

7.1 Each record under this Agreement shall be retained for not less than seven years from the date of the invoice to which it relates.

7.2 No record shall be treated as effective for the purposes of this Agreement unless it is retained for not less than seven years from the date of the invoice to which it relates, and the Party relying on it bears the burden of demonstrating that it was.

7.3 Where a record is retained for not less than seven years from the date of the invoice to which it relates, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

7.4 The Parties acknowledge that a record which is not retained for not less than seven years from the date of the invoice to which it relates may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

7.5 For the avoidance of doubt, nothing in this Article requires a record to be retained for not less than seven years from the date of the invoice to which it relates where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

7.6 Each record under this Agreement shall be maintained in a form that permits each line item to be traced to the underlying clinical episode.

7.7 No record shall be treated as effective for the purposes of this Agreement unless it is maintained in a form that permits each line item to be traced to the underlying clinical episode, and the Party relying on it bears the burden of demonstrating that it was.

7.8 Where a record is maintained in a form that permits each line item to be traced to the underlying clinical episode, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

7.9 The Parties acknowledge that a record which is not maintained in a form that permits each line item to be traced to the underlying clinical episode may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

7.10 For the avoidance of doubt, nothing in this Article requires a record to be maintained in a form that permits each line item to be traced to the underlying clinical episode where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

7.11 Each record under this Agreement shall be made available in a machine-readable format upon reasonable request.

7.12 No record shall be treated as effective for the purposes of this Agreement unless it is made available in a machine-readable format upon reasonable request, and the Party relying on it bears the burden of demonstrating that it was.

7.13 Where a record is made available in a machine-readable format upon reasonable request, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

7.14 The Parties acknowledge that a record which is not made available in a machine-readable format upon reasonable request may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

7.15 For the avoidance of doubt, nothing in this Article requires a record to be made available in a machine-readable format upon reasonable request where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE VIII — CONTRACTED SERVICES (THREE GROUP)**

8.1 In respect of Assisted Musculoskeletal Diagnostic Imaging, the Provider shall invoice the Payer at the rate of GBP 180.50 per item supplied. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Assisted Musculoskeletal Diagnostic Imaging, and shall not present it under a description that identifies a different contracted Service.

8.2 In respect of Continuous Renal Ventilation Support, the Provider shall invoice the Payer at the rate of GBP 543.25 per day of service. Where the Service Date of this Service does not fall on a Business Day, the rate applicable to it shall be increased by twenty-five percent (25%). Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Continuous Renal Ventilation Support, and shall not present it under a description that identifies a different contracted Service.

8.3 In respect of Emergency Haematology Transport Service, the Provider shall invoice the Payer at the rate of GBP 96.75 per visit. Where cumulative utilisation of this Service exceeds sixty (60) visits, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of ten percent (10%) shall be applied to each subsequent Unit. Where cumulative utilisation of this Service exceeds one hundred and eighty (180) visits, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of twenty percent (20%) shall be applied to each subsequent Unit. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Emergency Haematology Transport Service, and shall not present it under a description that identifies a different contracted Service.

8.4 In respect of Focused Cardiac Dialysis Session, the Provider shall invoice the Payer at the rate of GBP 2,370.00 per procedure. The Provider shall not bill more than six (6) procedures of this Service for a Patient on a single Service Day. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Focused Cardiac Dialysis Session, and shall not present it under a description that identifies a different contracted Service.

8.5 In respect of Intensive Palliative Ward Bed Occupancy, the Provider shall invoice the Payer at the rate of GBP 1,367.25

per day of service. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intensive Palliative Ward Bed Occupancy, and shall not present it under a description that identifies a different contracted Service.

8.6 In respect of Intermittent Psychiatric Laboratory Panel, the Provider shall invoice the Payer at the rate of GBP 504.75 per test. This Service is not billable where Emergency Pulmonary Ventilation Support has been delivered to the same Patient within seven (7) days of the Service Date. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intermittent Psychiatric Laboratory Panel, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE IX — AUDIT RIGHTS**

9.1 Each audit under this Agreement shall be conducted on not less than fifteen (15) days' written notice.

9.2 No audit shall be treated as effective for the purposes of this Agreement unless it is conducted on not less than fifteen (15) days' written notice, and the Party relying on it bears the burden of demonstrating that it was.

9.3 Where a audit is conducted on not less than fifteen (15) days' written notice, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

9.4 The Parties acknowledge that a audit which is not conducted on not less than fifteen (15) days' written notice may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

9.5 For the avoidance of doubt, nothing in this Article requires a audit to be conducted on not less than fifteen (15) days' written notice where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

9.6 Each audit under this Agreement shall be limited to matters bearing on amounts invoiced under this Agreement.

9.7 No audit shall be treated as effective for the purposes of this Agreement unless it is limited to matters bearing on amounts invoiced under this Agreement, and the Party relying on it bears the burden of demonstrating that it was.

9.8 Where a audit is limited to matters bearing on amounts invoiced under this Agreement, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

9.9 The Parties acknowledge that a audit which is not limited to matters bearing on amounts invoiced under this Agreement may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

9.10 For the avoidance of doubt, nothing in this Article requires a audit to be limited to matters bearing on amounts invoiced under this Agreement where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

9.11 Each audit under this Agreement shall be conducted during normal working hours and without unreasonable disruption to clinical activity.

9.12 No audit shall be treated as effective for the purposes of this Agreement unless it is conducted during normal working hours and without unreasonable disruption to clinical activity, and the Party relying on it bears the burden of demonstrating that it was.

9.13 Where a audit is conducted during normal working hours and without unreasonable disruption to clinical activity, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

9.14 The Parties acknowledge that a audit which is not conducted during normal working hours and without unreasonable disruption to clinical activity may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

9.15 For the avoidance of doubt, nothing in this Article requires a audit to be conducted during normal working hours and without unreasonable disruption to clinical activity where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE X — CONTRACTED SERVICES (FOUR GROUP)**

10.1 In respect of Postoperative Pulmonary Infusion Therapy, the Provider shall invoice the Payer at the rate of GBP 67.25 per unit dispensed. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Postoperative Pulmonary Infusion Therapy, and shall not present it under a description that identifies a different contracted Service.

10.2 In respect of Preoperative Obstetric Home Visit, the Provider shall invoice the Payer at the rate of GBP 184.75 per visit. Where cumulative utilisation of this Service exceeds one hundred (100) visits, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of fifteen percent (15%) shall be applied to each subsequent Unit. Where cumulative utilisation of this Service exceeds three hundred (300) visits, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of twenty-five percent (25%) shall be applied to each subsequent Unit. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Preoperative Obstetric Home Visit, and shall not present it under a description that identifies a different contracted Service.

10.3 In respect of Standard Neurological Isolation Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 780.75 per day of service. Where the Service Date of this Service does not fall on a Business Day, the rate applicable to it shall be increased by fifteen percent (15%). The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Standard Neurological Isolation Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

10.4 In respect of Supervised Metabolic Laboratory Panel, the Provider shall invoice the Payer at the rate of GBP 79.25 per item supplied. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds sixteen (16) items, the rate applicable to that Service Day shall be increased by fifteen percent (15%). The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Supervised Metabolic Laboratory Panel, and shall not present it under a description that identifies a different contracted Service.

10.5 In respect of Advanced Rheumatologic Isolation Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 1,416.75 per night of occupancy. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Advanced Rheumatologic Isolation Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

10.6 In respect of Assisted Gastrointestinal Biopsy Procedure, the Provider shall invoice the Payer at the rate of GBP 3,796.25 per procedure. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Assisted Gastrointestinal Biopsy Procedure, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XI — RECOVERY OF OVERPAYMENTS**

11.1 Each recovery under this Agreement shall be notified to the Provider with a statement of the line items concerned.

11.2 No recovery shall be treated as effective for the purposes of this Agreement unless it is notified to the Provider with a statement of the line items concerned, and the Party relying on it bears the burden of demonstrating that it was.

11.3 Where a recovery is notified to the Provider with a statement of the line items concerned, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

11.4 The Parties acknowledge that a recovery which is not notified to the Provider with a statement of the line items concerned may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

11.5 For the avoidance of doubt, nothing in this Article requires a recovery to be notified to the Provider with a statement of the line items concerned where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

11.6 Each recovery under this Agreement shall be subject to a right of response of not less than twenty (20) days.

11.7 No recovery shall be treated as effective for the purposes of this Agreement unless it is subject to a right of response of not less than twenty (20) days, and the Party relying on it bears the burden of demonstrating that it was.

11.8 Where a recovery is subject to a right of response of not less than twenty (20) days, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

11.9 The Parties acknowledge that a recovery which is not subject to a right of response of not less than twenty (20) days may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

11.10 For the avoidance of doubt, nothing in this Article requires a recovery to be subject to a right of response of not less than twenty (20) days where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

11.11 Each recovery under this Agreement shall be capable of set-off against sums otherwise falling due.

11.12 No recovery shall be treated as effective for the purposes of this Agreement unless it is capable of set-off against sums otherwise falling due, and the Party relying on it bears the burden of demonstrating that it was.

11.13 Where a recovery is capable of set-off against sums otherwise falling due, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

11.14 The Parties acknowledge that a recovery which is not capable of set-off against sums otherwise falling due may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

11.15 For the avoidance of doubt, nothing in this Article requires a recovery to be capable of set-off against sums otherwise falling due where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XII — CONTRACTED SERVICES (FIVE GROUP)**

12.1 In respect of Continuous Otolaryngologic Discharge Planning, the Provider shall invoice the Payer at the rate of GBP 193.25 per visit. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Continuous Otolaryngologic Discharge Planning, and shall not present it under a description that identifies a different contracted Service.

12.2 In respect of Extended Orthopaedic Radiotherapy Fraction, the Provider shall invoice the Payer at the rate of GBP 279.00 per item supplied. Where the Service Date of this Service does not fall on a Business Day, the rate applicable to it shall be increased by twenty-five percent (25%). The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Extended Orthopaedic Radiotherapy Fraction, and shall not present it under a description that identifies a different contracted Service.

12.3 In respect of Focused Vascular Transfusion Service, the Provider shall invoice the Payer at the rate of GBP 4,507.00 per procedure. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds twelve (12) procedures, the rate applicable to that Service Day shall be increased by fifteen percent (15%). The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a



description sufficient to identify it as Focused Vascular Transfusion Service, and shall not present it under a description that identifies a different contracted Service.

12.4 In respect of Intensive Paediatric Infusion Therapy, the Provider shall invoice the Payer at the rate of GBP 29.00 per unit dispensed. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intensive Paediatric Infusion Therapy, and shall not present it under a description that identifies a different contracted Service.

12.5 In respect of Intermittent Otolaryngologic Rehabilitation Programme, the Provider shall invoice the Payer at the rate of GBP 307.75 per visit. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intermittent Otolaryngologic Rehabilitation Programme, and shall not present it under a description that identifies a different contracted Service.

12.6 In respect of Postoperative Cardiac Physiotherapy Session, the Provider shall invoice the Payer at the rate of GBP 337.75 per visit. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Postoperative Cardiac Physiotherapy Session, and shall not present it under a description that identifies a different contracted Service.

### **ARTICLE XIII — INVOICE SUBMISSION**

13.1 Each invoice under this Agreement shall be submitted no later than sixty (60) days after the discharge date of the Episode of Care to which it relates.

13.2 No invoice shall be treated as effective for the purposes of this Agreement unless it is submitted no later than sixty (60) days after the discharge date of the Episode of Care to which it relates, and the Party relying on it bears the burden of demonstrating that it was.

13.3 Where a invoice is submitted no later than sixty (60) days after the discharge date of the Episode of Care to which it relates, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

13.4 The Parties acknowledge that a invoice which is not submitted no later than sixty (60) days after the discharge date of the Episode of Care to which it relates may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

13.5 For the avoidance of doubt, nothing in this Article requires a invoice to be submitted no later than sixty (60) days after the discharge date of the Episode of Care to which it relates where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

13.6 Each invoice under this Agreement shall be identified by an invoice number unique across the whole term of this Agreement.

13.7 No invoice shall be treated as effective for the purposes of this Agreement unless it is identified by an invoice number unique across the whole term of this Agreement, and the Party relying on it bears the burden of demonstrating that it was.

13.8 Where a invoice is identified by an invoice number unique across the whole term of this Agreement, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

13.9 The Parties acknowledge that a invoice which is not identified by an invoice number unique across the whole term of this Agreement may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

13.10 For the avoidance of doubt, nothing in this Article requires a invoice to be identified by an invoice number unique across the whole term of this Agreement where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

13.11 Each invoice under this Agreement shall be quoting the contract number recorded on the face of this Agreement.

13.12 No invoice shall be treated as effective for the purposes of this Agreement unless it is quoting the contract number recorded on the face of this Agreement, and the Party relying on it bears the burden of demonstrating that it was.

13.13 Where a invoice is quoting the contract number recorded on the face of this Agreement, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

13.14 The Parties acknowledge that a invoice which is not quoting the contract number recorded on the face of this Agreement may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

13.15 For the avoidance of doubt, nothing in this Article requires a invoice to be quoting the contract number recorded on the face of this Agreement where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

#### **ARTICLE XIV — CONTRACTED SERVICES (SIX GROUP)**

14.1 In respect of Preoperative Obstetric Physiotherapy Session, the Provider shall invoice the Payer at the rate of GBP 128.00 per visit. The Provider shall not bill more than four (4) visits of this Service for a Patient on a single Service Day. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Preoperative Obstetric Physiotherapy Session, and shall not present it under a description that identifies a different contracted Service.

14.2 In respect of Standard Orthopaedic Isolation Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 332.75 per day of service. Where this Service and Outpatient Haematology Biopsy Procedure are both delivered to the same Patient on the same Service Day, the two shall be billed as a bundle, this Service at GBP 272.75 per day of service and Outpatient Haematology Biopsy Procedure at GBP 736.25 per procedure, in substitution for their standalone rates. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Standard Orthopaedic Isolation Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

14.3 In respect of Supervised Rheumatologic Critical Care Occupancy, the Provider shall invoice the Payer at the rate of GBP 728.00 per night of occupancy. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Supervised Rheumatologic Critical Care Occupancy, and shall not present it under a description that identifies a different contracted Service.

14.4 In respect of Advanced Gastrointestinal Endoscopic Procedure, the Provider shall invoice the Payer at the rate of GBP 3,777.50 per procedure. Where cumulative utilisation of this Service exceeds one hundred and twenty (120) procedures, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of twelve percent (12%) shall be applied to each subsequent Unit. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Advanced Gastrointestinal Endoscopic Procedure, and shall not present it under a description that identifies a different contracted Service.

14.5 In respect of Bedside Obstetric Physiotherapy Session, the Provider shall invoice the Payer at the rate of GBP 69.50 per hour. Where this Service and Postoperative Orthopaedic Isolation Room Occupancy are both delivered to the same Patient on the same Service Day, the two shall be billed as a bundle, this Service at GBP 52.00 per hour and Postoperative Orthopaedic Isolation Room Occupancy at GBP 903.50 per night of occupancy, in substitution for their standalone rates. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on

its invoices under a description sufficient to identify it as Bedside Obstetric Physiotherapy Session, and shall not present it under a description that identifies a different contracted Service.

14.6 In respect of Elective Cardiac Nursing Observation, the Provider shall invoice the Payer at the rate of GBP 67.75 per hour. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds twelve (12) hours, the rate applicable to that Service Day shall be increased by forty percent (40%). The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Elective Cardiac Nursing Observation, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XV — DISPUTED AMOUNTS**

15.1 Each dispute under this Agreement shall be itemised by invoice and by line item.

15.2 No dispute shall be treated as effective for the purposes of this Agreement unless it is itemised by invoice and by line item, and the Party relying on it bears the burden of demonstrating that it was.

15.3 Where a dispute is itemised by invoice and by line item, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

15.4 The Parties acknowledge that a dispute which is not itemised by invoice and by line item may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

15.5 For the avoidance of doubt, nothing in this Article requires a dispute to be itemised by invoice and by line item where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

15.6 Each dispute under this Agreement shall be escalated to the contract managers of both Parties before any formal proceedings.

15.7 No dispute shall be treated as effective for the purposes of this Agreement unless it is escalated to the contract managers of both Parties before any formal proceedings, and the Party relying on it bears the burden of demonstrating that it was.

15.8 Where a dispute is escalated to the contract managers of both Parties before any formal proceedings, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

15.9 The Parties acknowledge that a dispute which is not escalated to the contract managers of both Parties before any formal proceedings may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

15.10 For the avoidance of doubt, nothing in this Article requires a dispute to be escalated to the contract managers of both Parties before any formal proceedings where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

15.11 Each dispute under this Agreement shall be settled without prejudice to the remainder of the invoice, which shall be paid in the ordinary course.

15.12 No dispute shall be treated as effective for the purposes of this Agreement unless it is settled without prejudice to the remainder of the invoice, which shall be paid in the ordinary course, and the Party relying on it bears the burden of demonstrating that it was.

15.13 Where a dispute is settled without prejudice to the remainder of the invoice, which shall be paid in the ordinary course, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

15.14 The Parties acknowledge that a dispute which is not settled without prejudice to the remainder of the invoice, which shall be paid in the ordinary course may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

15.15 For the avoidance of doubt, nothing in this Article requires a dispute to be settled without prejudice to the remainder of the invoice, which shall be paid in the ordinary course where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XVI — CONTRACTED SERVICES (SEVEN GROUP)**

16.1 In respect of Extended Otolaryngologic Nutritional Support, the Provider shall invoice the Payer at the rate of GBP

549.75 per night of occupancy. Where the Service Date of this Service does not fall on a Business Day, the rate applicable to it shall be increased by fifteen percent (15%). The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Extended Otolaryngologic Nutritional Support, and shall not present it under a description that identifies a different contracted Service.

16.2 In respect of Focused Ophthalmic Laboratory Panel, the Provider shall invoice the Payer at the rate of GBP 268.00 per test. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Focused Ophthalmic Laboratory Panel, and shall not present it under a description that identifies a different contracted Service.

16.3 In respect of Intensive Infectious Physiotherapy Session, the Provider shall invoice the Payer at the rate of GBP 344.75 per visit. This Service is not billable where Routine Ophthalmic Laboratory Panel has been delivered to the same Patient within ten (10) days of the Service Date. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intensive Infectious Physiotherapy Session, and shall not present it under a description that identifies a different contracted Service.

16.4 In respect of Outpatient Haematology Biopsy Procedure, the Provider shall invoice the Payer at the rate of GBP 897.75 per procedure. Where this Service and Standard Orthopaedic Isolation Room Occupancy are both delivered to the same Patient on the same Service Day, the two shall be billed as a bundle, this Service at GBP 736.25 per procedure and Standard Orthopaedic Isolation Room Occupancy at GBP 272.75 per day of service, in substitution for their standalone rates. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Outpatient Haematology Biopsy Procedure, and shall not present it under a description that identifies a different contracted Service.

16.5 In respect of Postoperative Vascular Transport Service, the Provider shall invoice the Payer at the rate of GBP 150.25 per visit. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Postoperative Vascular Transport Service, and shall not present it under a description that identifies a different contracted Service.

16.6 In respect of Routine Geriatric Physiotherapy Session, the Provider shall invoice the Payer at the rate of GBP 212.50 per hour. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Routine Geriatric Physiotherapy Session, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XVII — CONFIDENTIALITY**

17.1 Each disclosure under this Agreement shall be restricted to those of the receiving Party's personnel who need to know it for the performance of this Agreement.

17.2 No disclosure shall be treated as effective for the purposes of this Agreement unless it is restricted to those of the receiving Party's personnel who need to know it for the performance of this Agreement, and the Party relying on it bears the burden of demonstrating that it was.

17.3 Where a disclosure is restricted to those of the receiving Party's personnel who need to know it for the performance of this Agreement, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

17.4 The Parties acknowledge that a disclosure which is not restricted to those of the receiving Party's personnel who need to know it for the performance of this Agreement may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

17.5 For the avoidance of doubt, nothing in this Article requires a disclosure to be restricted to those of the receiving Party's personnel who need to know it for the performance of this Agreement where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

17.6 Each disclosure under this Agreement shall be protected with no less care than the receiving Party applies to its own confidential information.

17.7 No disclosure shall be treated as effective for the purposes of this Agreement unless it is protected with no less care than the receiving Party applies to its own confidential information, and the Party relying on it bears the burden of demonstrating that it was.

17.8 Where a disclosure is protected with no less care than the receiving Party applies to its own confidential information, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

17.9 The Parties acknowledge that a disclosure which is not protected with no less care than the receiving Party applies to its own confidential information may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

17.10 For the avoidance of doubt, nothing in this Article requires a disclosure to be protected with no less care than the receiving Party applies to its own confidential information where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

17.11 Each disclosure under this Agreement shall be returned or destroyed on the expiry of this Agreement.

17.12 No disclosure shall be treated as effective for the purposes of this Agreement unless it is returned or destroyed on the expiry of this Agreement, and the Party relying on it bears the burden of demonstrating that it was.

17.13 Where a disclosure is returned or destroyed on the expiry of this Agreement, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

17.14 The Parties acknowledge that a disclosure which is not returned or destroyed on the expiry of this Agreement may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

17.15 For the avoidance of doubt, nothing in this Article requires a disclosure to be returned or destroyed on the expiry of this Agreement where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XVIII — CONTRACTED SERVICES (EIGHT GROUP)**

18.1 In respect of Standard Metabolic Telemetry Monitoring, the Provider shall invoice the Payer at the rate of GBP 164.00 per hour. This Service is not billable where Routine Geriatric Physiotherapy Session has been delivered to the same Patient within fourteen (14) days of the Service Date. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Standard Metabolic Telemetry Monitoring, and shall not present it under a description that identifies a different contracted Service.

18.2 In respect of Supervised Hepatic Endoscopic Procedure, the Provider shall invoice the Payer at the rate of GBP 2,498.25 per procedure. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Supervised Hepatic Endoscopic Procedure, and shall not present it under a description that identifies a different contracted Service.

18.3 In respect of Advanced Endocrine Case Conference, the Provider shall invoice the Payer at the rate of GBP 174.00 per visit. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one

stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Advanced Endocrine Case Conference, and shall not present it under a description that identifies a different contracted Service.

18.4 In respect of Bedside Ophthalmic Radiotherapy Fraction, the Provider shall invoice the Payer at the rate of GBP 1,235.50 per procedure. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Bedside Ophthalmic Radiotherapy Fraction, and shall not present it under a description that identifies a different contracted Service.

18.5 In respect of Elective Cardiac Transport Service, the Provider shall invoice the Payer at the rate of GBP 91.25 per item supplied. Where cumulative utilisation of this Service exceeds one hundred and twenty (120) items, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of ten percent (10%) shall be applied to each subsequent Unit. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Elective Cardiac Transport Service, and shall not present it under a description that identifies a different contracted Service.

18.6 In respect of Extended Dermatologic Specimen Analysis, the Provider shall invoice the Payer at the rate of GBP 352.00 per test. This Service is not billable where Advanced Endocrine Case Conference has been delivered to the same Patient within seven (7) days of the Service Date. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Extended Dermatologic Specimen Analysis, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XIX — DATA PROTECTION**

19.1 Each processing operation under this Agreement shall be carried out only on documented instructions from the Payer.

19.2 No processing operation shall be treated as effective for the purposes of this Agreement unless it is carried out only on documented instructions from the Payer, and the Party relying on it bears the burden of demonstrating that it was.

19.3 Where a processing operation is carried out only on documented instructions from the Payer, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

19.4 The Parties acknowledge that a processing operation which is not carried out only on documented instructions from the Payer may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

19.5 For the avoidance of doubt, nothing in this Article requires a processing operation to be carried out only on documented instructions from the Payer where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

19.6 Each processing operation under this Agreement shall be supported by appropriate technical and organisational measures.

19.7 No processing operation shall be treated as effective for the purposes of this Agreement unless it is supported by appropriate technical and organisational measures, and the Party relying on it bears the burden of demonstrating that it was.

19.8 Where a processing operation is supported by appropriate technical and organisational measures, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

19.9 The Parties acknowledge that a processing operation which is not supported by appropriate technical and organisational measures may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

19.10 For the avoidance of doubt, nothing in this Article requires a processing operation to be supported by appropriate technical and organisational measures where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

19.11 Each processing operation under this Agreement shall be the subject of a record of processing activities maintained by

each Party.

19.12 No processing operation shall be treated as effective for the purposes of this Agreement unless it is the subject of a record of processing activities maintained by each Party, and the Party relying on it bears the burden of demonstrating that it was.

19.13 Where a processing operation is the subject of a record of processing activities maintained by each Party, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

19.14 The Parties acknowledge that a processing operation which is not the subject of a record of processing activities maintained by each Party may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

19.15 For the avoidance of doubt, nothing in this Article requires a processing operation to be the subject of a record of processing activities maintained by each Party where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XX — CONTRACTED SERVICES (NINE GROUP)**

20.1 In respect of Inpatient Ophthalmic Recovery Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 77.25 per hour. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Inpatient Ophthalmic Recovery Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

20.2 In respect of Intensive Neurological Rehabilitation Programme, the Provider shall invoice the Payer at the rate of GBP 141.25 per visit. The Provider shall not bill more than twelve (12) visits of this Service for a Patient on a single Service Day. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intensive Neurological Rehabilitation Programme, and shall not present it under a description that identifies a different contracted Service.

20.3 In respect of Postoperative Neurological Rehabilitation Programme, the Provider shall invoice the Payer at the rate of GBP 522.50 per day of service. This Service is not billable where Bedside Ophthalmic Radiotherapy Fraction has been delivered to the same Patient within seven (7) days of the Service Date. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Postoperative Neurological Rehabilitation Programme, and shall not present it under a description that identifies a different contracted Service.

20.4 In respect of Preoperative Neurological Isolation Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 1,704.75 per night of occupancy. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds six (6) nights, the rate applicable to that Service Day shall be increased by twenty-five percent (25%). The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Preoperative Neurological Isolation Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

20.5 In respect of Routine Ophthalmic Laboratory Panel, the Provider shall invoice the Payer at the rate of GBP 231.00 per item supplied. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Routine Ophthalmic Laboratory Panel, and shall not present it under a description that identifies a different contracted Service.

20.6 In respect of Standard Paediatric Infusion Therapy, the Provider shall invoice the Payer at the rate of GBP 127.50 per hour. The Provider shall not bill more than four (4) hours of this Service for a Patient on a single Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Standard Paediatric Infusion Therapy, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XXI — CLINICAL GOVERNANCE**

21.1 Each clinical review under this Agreement shall be undertaken by a clinician of appropriate seniority.

21.2 No clinical review shall be treated as effective for the purposes of this Agreement unless it is undertaken by a clinician of appropriate seniority, and the Party relying on it bears the burden of demonstrating that it was.

21.3 Where a clinical review is undertaken by a clinician of appropriate seniority, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

21.4 The Parties acknowledge that a clinical review which is not undertaken by a clinician of appropriate seniority may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

21.5 For the avoidance of doubt, nothing in this Article requires a clinical review to be undertaken by a clinician of appropriate seniority where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

21.6 Each clinical review under this Agreement shall be documented in the Provider's quality management system.

21.7 No clinical review shall be treated as effective for the purposes of this Agreement unless it is documented in the Provider's quality management system, and the Party relying on it bears the burden of demonstrating that it was.

21.8 Where a clinical review is documented in the Provider's quality management system, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

21.9 The Parties acknowledge that a clinical review which is not documented in the Provider's quality management system may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

21.10 For the avoidance of doubt, nothing in this Article requires a clinical review to be documented in the Provider's quality management system where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

21.11 Each clinical review under this Agreement shall be summarised to the Payer on a quarterly basis.

21.12 No clinical review shall be treated as effective for the purposes of this Agreement unless it is summarised to the Payer on a quarterly basis, and the Party relying on it bears the burden of demonstrating that it was.

21.13 Where a clinical review is summarised to the Payer on a quarterly basis, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

21.14 The Parties acknowledge that a clinical review which is not summarised to the Payer on a quarterly basis may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

21.15 For the avoidance of doubt, nothing in this Article requires a clinical review to be summarised to the Payer on a quarterly basis where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXII — CONTRACTED SERVICES (TEN GROUP)**

22.1 In respect of Supervised Musculoskeletal Diagnostic Imaging, the Provider shall invoice the Payer at the rate of GBP 4,244.75 per procedure. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Supervised Musculoskeletal Diagnostic Imaging, and shall not present it under a description that identifies a different contracted Service.

22.2 In respect of Ambulatory Vascular Infusion Therapy, the Provider shall invoice the Payer at the rate of GBP 42.25 per hour. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds ten (10) hours, the



rate applicable to that Service Day shall be increased by twenty-five percent (25%). The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Ambulatory Vascular Infusion Therapy, and shall not present it under a description that identifies a different contracted Service.

22.3 In respect of Bedside Pulmonary Pharmaceutical Dispensing, the Provider shall invoice the Payer at the rate of GBP 69.00 per unit dispensed. Where this Service and Comprehensive Haematology Transport Service are both delivered to the same Patient on the same Service Day, the two shall be billed as a bundle, this Service at GBP 58.75 per unit dispensed and Comprehensive Haematology Transport Service at GBP 141.50 per item supplied, in substitution for their standalone rates. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Bedside Pulmonary Pharmaceutical Dispensing, and shall not present it under a description that identifies a different contracted Service.

22.4 In respect of Emergency Pulmonary Ventilation Support, the Provider shall invoice the Payer at the rate of GBP 546.75 per day of service. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Emergency Pulmonary Ventilation Support, and shall not present it under a description that identifies a different contracted Service.

22.5 In respect of Extended Vascular Home Visit, the Provider shall invoice the Payer at the rate of GBP 432.00 per visit. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Extended Vascular Home Visit, and shall not present it under a description that identifies a different contracted Service.

22.6 In respect of Inpatient Orthopaedic Recovery Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 521.00 per night of occupancy. Where cumulative utilisation of this Service exceeds one hundred (100) nights, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of twelve percent (12%) shall be applied to each subsequent Unit. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Inpatient Orthopaedic Recovery Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XXIII — CODING AND DESCRIPTION PRACTICE**

23.1 Each description under this Agreement shall be sufficient to identify the Service actually delivered.

23.2 No description shall be treated as effective for the purposes of this Agreement unless it is sufficient to identify the Service actually delivered, and the Party relying on it bears the burden of demonstrating that it was.

23.3 Where a description is sufficient to identify the Service actually delivered, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

23.4 The Parties acknowledge that a description which is not sufficient to identify the Service actually delivered may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

23.5 For the avoidance of doubt, nothing in this Article requires a description to be sufficient to identify the Service actually delivered where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

23.6 Each description under this Agreement shall be used consistently across the Provider's billing systems.

23.7 No description shall be treated as effective for the purposes of this Agreement unless it is used consistently across the Provider's billing systems, and the Party relying on it bears the burden of demonstrating that it was.

23.8 Where a description is used consistently across the Provider's billing systems, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

23.9 The Parties acknowledge that a description which is not used consistently across the Provider's billing systems may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

23.10 For the avoidance of doubt, nothing in this Article requires a description to be used consistently across the Provider's billing systems where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

23.11 Each description under this Agreement shall be incapable of varying the rate applicable to the Service.

23.12 No description shall be treated as effective for the purposes of this Agreement unless it is incapable of varying the rate applicable to the Service, and the Party relying on it bears the burden of demonstrating that it was.

23.13 Where a description is incapable of varying the rate applicable to the Service, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

23.14 The Parties acknowledge that a description which is not incapable of varying the rate applicable to the Service may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

23.15 For the avoidance of doubt, nothing in this Article requires a description to be incapable of varying the rate applicable to the Service where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXIV — CONTRACTED SERVICES (ELEVEN GROUP)**

24.1 In respect of Intermittent Orthopaedic Recovery Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 126.00 per hour. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intermittent Orthopaedic Recovery Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

24.2 In respect of Postoperative Ophthalmic Anaesthesia Administration, the Provider shall invoice the Payer at the rate of GBP 206.25 per hour. Where cumulative utilisation of this Service exceeds eighty (80) hours, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of ten percent (10%) shall be applied to each subsequent Unit. Where cumulative utilisation of this Service exceeds two hundred and forty (240) hours, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of thirty percent (30%) shall be applied to each subsequent Unit. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Postoperative Ophthalmic Anaesthesia Administration, and shall not present it under a description that identifies a different contracted Service.

24.3 In respect of Preoperative Orthopaedic Ventilation Support, the Provider shall invoice the Payer at the rate of GBP 843.25 per night of occupancy. Where the Service Date of this Service does not fall on a Business Day, the rate applicable to it shall be increased by ten percent (10%). Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Preoperative Orthopaedic Ventilation Support, and shall not present it under a description that identifies a different contracted Service.

24.4 In respect of Routine Infectious Isolation Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 1,913.25 per night of occupancy. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis.

The Provider shall present this Service on its invoices under a description sufficient to identify it as Routine Infectious Isolation Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

24.5 In respect of Standard Musculoskeletal Recovery Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 870.50 per night of occupancy. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds six (6) nights, the rate applicable to that Service Day shall be increased by fifteen percent (15%). The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Standard Musculoskeletal Recovery Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

24.6 In respect of Supervised Neurological Imaging Interpretation, the Provider shall invoice the Payer at the rate of GBP 772.00 per procedure. The Provider shall not bill more than six (6) procedures of this Service for a Patient on a single Service Day. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Supervised Neurological Imaging Interpretation, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XXV — CHANGE CONTROL**

25.1 Each change under this Agreement shall be recorded in a numbered amendment executed by both Parties.

25.2 No change shall be treated as effective for the purposes of this Agreement unless it is recorded in a numbered amendment executed by both Parties, and the Party relying on it bears the burden of demonstrating that it was.

25.3 Where a change is recorded in a numbered amendment executed by both Parties, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

25.4 The Parties acknowledge that a change which is not recorded in a numbered amendment executed by both Parties may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

25.5 For the avoidance of doubt, nothing in this Article requires a change to be recorded in a numbered amendment executed by both Parties where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

25.6 Each change under this Agreement shall be effective by reference to Service Date unless the amendment expressly provides otherwise.

25.7 No change shall be treated as effective for the purposes of this Agreement unless it is effective by reference to Service Date unless the amendment expressly provides otherwise, and the Party relying on it bears the burden of demonstrating that it was.

25.8 Where a change is effective by reference to Service Date unless the amendment expressly provides otherwise, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

25.9 The Parties acknowledge that a change which is not effective by reference to Service Date unless the amendment expressly provides otherwise may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

25.10 For the avoidance of doubt, nothing in this Article requires a change to be effective by reference to Service Date unless the amendment expressly provides otherwise where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

25.11 Each change under this Agreement shall be without effect on invoices already settled.

25.12 No change shall be treated as effective for the purposes of this Agreement unless it is without effect on invoices already settled, and the Party relying on it bears the burden of demonstrating that it was.

25.13 Where a change is without effect on invoices already settled, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

25.14 The Parties acknowledge that a change which is not without effect on invoices already settled may nonetheless be given

effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

25.15 For the avoidance of doubt, nothing in this Article requires a change to be without effect on invoices already settled where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXVI — CONTRACTED SERVICES (TWELVE GROUP)**

26.1 In respect of Ambulatory Haematology Nutritional Support, the Provider shall invoice the Payer at the rate of GBP 86.75 per unit dispensed. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds twelve (12) units, the rate applicable to that Service Day shall be increased by forty percent (40%). The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Ambulatory Haematology Nutritional Support, and shall not present it under a description that identifies a different contracted Service.

26.2 In respect of Comprehensive Haematology Transport Service, the Provider shall invoice the Payer at the rate of GBP 166.50 per item supplied. Where this Service and Bedside Pulmonary Pharmaceutical Dispensing are both delivered to the same Patient on the same Service Day, the two shall be billed as a bundle, this Service at GBP 141.50 per item supplied and Bedside Pulmonary Pharmaceutical Dispensing at GBP 58.75 per unit dispensed, in substitution for their standalone rates. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Comprehensive Haematology Transport Service, and shall not present it under a description that identifies a different contracted Service.

26.3 In respect of Emergency Paediatric Theatre Time, the Provider shall invoice the Payer at the rate of GBP 85.00 per hour. This Service is not billable where Routine Geriatric Physiotherapy Session has been delivered to the same Patient within seven (7) days of the Service Date. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service on its invoices under a description sufficient to identify it as Emergency Paediatric Theatre Time, and shall not present it under a description that identifies a different contracted Service.

26.4 In respect of Focused Pulmonary Pharmaceutical Dispensing, the Provider shall invoice the Payer at the rate of GBP 100.50 per item supplied. Where cumulative utilisation of this Service exceeds one hundred (100) items, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of fifteen percent (15%) shall be applied to each subsequent Unit. Where cumulative utilisation of this Service exceeds three hundred (300) items, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of twenty-five percent (25%) shall be applied to each subsequent Unit. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Focused Pulmonary Pharmaceutical Dispensing, and shall not present it under a description that identifies a different contracted Service.

26.5 In respect of Inpatient Paediatric Isolation Room Occupancy, the Provider shall invoice the Payer at the rate of GBP 1,484.00 per night of occupancy. Where the aggregate quantity of this Service delivered to a Patient on a single Service Day exceeds eight (8) nights, the rate applicable to that Service Day shall be increased by fifteen percent (15%). The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Inpatient Paediatric Isolation Room Occupancy, and shall not present it under a description that identifies a different contracted Service.

26.6 In respect of Intermittent Cardiac Specimen Analysis, the Provider shall invoice the Payer at the rate of GBP 266.75 per item supplied. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any

Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. The Provider shall present this Service on its invoices under a description sufficient to identify it as Intermittent Cardiac Specimen Analysis, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XXVII — ASSIGNMENT AND SUBCONTRACTING**

27.1 Each assignment under this Agreement shall be ineffective without the prior written consent of the other Party.

27.2 No assignment shall be treated as effective for the purposes of this Agreement unless it is ineffective without the prior written consent of the other Party, and the Party relying on it bears the burden of demonstrating that it was.

27.3 Where a assignment is ineffective without the prior written consent of the other Party, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

27.4 The Parties acknowledge that a assignment which is not ineffective without the prior written consent of the other Party may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

27.5 For the avoidance of doubt, nothing in this Article requires a assignment to be ineffective without the prior written consent of the other Party where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

27.6 Each assignment under this Agreement shall be without prejudice to the assigning Party's continuing liability.

27.7 No assignment shall be treated as effective for the purposes of this Agreement unless it is without prejudice to the assigning Party's continuing liability, and the Party relying on it bears the burden of demonstrating that it was.

27.8 Where a assignment is without prejudice to the assigning Party's continuing liability, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

27.9 The Parties acknowledge that a assignment which is not without prejudice to the assigning Party's continuing liability may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

27.10 For the avoidance of doubt, nothing in this Article requires a assignment to be without prejudice to the assigning Party's continuing liability where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

27.11 Each assignment under this Agreement shall be notified to the other Party within ten (10) days.

27.12 No assignment shall be treated as effective for the purposes of this Agreement unless it is notified to the other Party within ten (10) days, and the Party relying on it bears the burden of demonstrating that it was.

27.13 Where a assignment is notified to the other Party within ten (10) days, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

27.14 The Parties acknowledge that a assignment which is not notified to the other Party within ten (10) days may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

27.15 For the avoidance of doubt, nothing in this Article requires a assignment to be notified to the other Party within ten (10) days where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXVIII — CONTRACTED SERVICES (THIRTEEN GROUP)**

28.1 In respect of Postoperative Paediatric Theatre Time, the Provider shall invoice the Payer at the rate of GBP 340.00 per hour. The Provider shall not bill more than six (6) hours of this Service for a Patient on a single Service Day. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. The Provider shall present this Service on its invoices under a description sufficient to identify it as Postoperative Paediatric Theatre Time, and shall not present it under a description that identifies a different contracted Service.

28.2 In respect of Preoperative Cardiac Specimen Analysis, the Provider shall invoice the Payer at the rate of GBP 53.75 per test. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The Provider shall present this Service

on its invoices under a description sufficient to identify it as Preoperative Cardiac Specimen Analysis, and shall not present it under a description that identifies a different contracted Service.

28.3 In respect of Routine Neurological Imaging Interpretation, the Provider shall invoice the Payer at the rate of GBP 113.75 per test. Where cumulative utilisation of this Service exceeds one hundred and twenty (120) tests, counted cumulatively across the whole term of this Agreement and aggregated across all Patients, a discount of twelve percent (12%) shall be applied to each subsequent Unit. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall be able to demonstrate, from its clinical record, the quantity billed for this Service on any Service Day. Where an invoice presents this Service on a unit basis other than the one stated in this clause, the line item shall be treated as incorrectly presented and shall be returned to the Provider. The Provider shall present this Service on its invoices under a description sufficient to identify it as Routine Neurological Imaging Interpretation, and shall not present it under a description that identifies a different contracted Service.

28.4 In respect of Standard Psychiatric Transfusion Service, the Provider shall invoice the Payer at the rate of GBP 70.25 per unit dispensed. The description applied by the Provider on any invoice shall not of itself vary the rate applicable to this Service; the rate follows the Service actually delivered. Any quantity billed for this Service must be expressed on the unit basis stated in this clause and on no other basis. The rate stated in this clause is inclusive of all consumables, staffing and overhead attributable to the Service, and no separate charge shall be raised in respect of them. The Provider shall present this Service on its invoices under a description sufficient to identify it as Standard Psychiatric Transfusion Service, and shall not present it under a description that identifies a different contracted Service.

## **ARTICLE XXIX — FORCE MAJEURE**

29.1 Each event of force majeure under this Agreement shall be notified as soon as reasonably practicable after it arises.

29.2 No event of force majeure shall be treated as effective for the purposes of this Agreement unless it is notified as soon as reasonably practicable after it arises, and the Party relying on it bears the burden of demonstrating that it was.

29.3 Where a event of force majeure is notified as soon as reasonably practicable after it arises, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

29.4 The Parties acknowledge that a event of force majeure which is not notified as soon as reasonably practicable after it arises may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

29.5 For the avoidance of doubt, nothing in this Article requires a event of force majeure to be notified as soon as reasonably practicable after it arises where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

29.6 Each event of force majeure under this Agreement shall be mitigated so far as the affected Party is reasonably able.

29.7 No event of force majeure shall be treated as effective for the purposes of this Agreement unless it is mitigated so far as the affected Party is reasonably able, and the Party relying on it bears the burden of demonstrating that it was.

29.8 Where a event of force majeure is mitigated so far as the affected Party is reasonably able, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

29.9 The Parties acknowledge that a event of force majeure which is not mitigated so far as the affected Party is reasonably able may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

29.10 For the avoidance of doubt, nothing in this Article requires a event of force majeure to be mitigated so far as the affected Party is reasonably able where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

29.11 Each event of force majeure under this Agreement shall be without effect on any payment obligation already accrued.

29.12 No event of force majeure shall be treated as effective for the purposes of this Agreement unless it is without effect on any payment obligation already accrued, and the Party relying on it bears the burden of demonstrating that it was.

29.13 Where a event of force majeure is without effect on any payment obligation already accrued, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

29.14 The Parties acknowledge that a event of force majeure which is not without effect on any payment obligation already accrued may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

29.15 For the avoidance of doubt, nothing in this Article requires a event of force majeure to be without effect on any payment obligation already accrued where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXX — INSURANCE**

30.1 Each policy of insurance under this Agreement shall be maintained with a reputable insurer throughout the term.

30.2 No policy of insurance shall be treated as effective for the purposes of this Agreement unless it is maintained with a reputable insurer throughout the term, and the Party relying on it bears the burden of demonstrating that it was.

30.3 Where a policy of insurance is maintained with a reputable insurer throughout the term, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

30.4 The Parties acknowledge that a policy of insurance which is not maintained with a reputable insurer throughout the term may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

30.5 For the avoidance of doubt, nothing in this Article requires a policy of insurance to be maintained with a reputable insurer throughout the term where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

30.6 Each policy of insurance under this Agreement shall be evidenced to the other Party on written request.

30.7 No policy of insurance shall be treated as effective for the purposes of this Agreement unless it is evidenced to the other Party on written request, and the Party relying on it bears the burden of demonstrating that it was.

30.8 Where a policy of insurance is evidenced to the other Party on written request, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

30.9 The Parties acknowledge that a policy of insurance which is not evidenced to the other Party on written request may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

30.10 For the avoidance of doubt, nothing in this Article requires a policy of insurance to be evidenced to the other Party on written request where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

30.11 Each policy of insurance under this Agreement shall be not reduced in scope without prior written notice.

30.12 No policy of insurance shall be treated as effective for the purposes of this Agreement unless it is not reduced in scope without prior written notice, and the Party relying on it bears the burden of demonstrating that it was.

30.13 Where a policy of insurance is not reduced in scope without prior written notice, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

30.14 The Parties acknowledge that a policy of insurance which is not not reduced in scope without prior written notice may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

30.15 For the avoidance of doubt, nothing in this Article requires a policy of insurance to be not reduced in scope without prior written notice where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXXI — TERMINATION**

31.1 Each termination under this Agreement shall be effected on not less than ninety (90) days' written notice.

31.2 No termination shall be treated as effective for the purposes of this Agreement unless it is effected on not less than ninety (90) days' written notice, and the Party relying on it bears the burden of demonstrating that it was.

31.3 Where a termination is effected on not less than ninety (90) days' written notice, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

31.4 The Parties acknowledge that a termination which is not effected on not less than ninety (90) days' written notice may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

31.5 For the avoidance of doubt, nothing in this Article requires a termination to be effected on not less than ninety (90) days' written notice where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

31.6 Each termination under this Agreement shall be without prejudice to accrued rights and remedies.

31.7 No termination shall be treated as effective for the purposes of this Agreement unless it is without prejudice to accrued rights and remedies, and the Party relying on it bears the burden of demonstrating that it was.

31.8 Where a termination is without prejudice to accrued rights and remedies, the Parties shall each act reasonably and without

undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

31.9 The Parties acknowledge that a termination which is not without prejudice to accrued rights and remedies may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

31.10 For the avoidance of doubt, nothing in this Article requires a termination to be without prejudice to accrued rights and remedies where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

31.11 Each termination under this Agreement shall be followed by an orderly reconciliation of outstanding invoices.

31.12 No termination shall be treated as effective for the purposes of this Agreement unless it is followed by an orderly reconciliation of outstanding invoices, and the Party relying on it bears the burden of demonstrating that it was.

31.13 Where a termination is followed by an orderly reconciliation of outstanding invoices, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

31.14 The Parties acknowledge that a termination which is not followed by an orderly reconciliation of outstanding invoices may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

31.15 For the avoidance of doubt, nothing in this Article requires a termination to be followed by an orderly reconciliation of outstanding invoices where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXXII — GOVERNING LAW AND JURISDICTION**

32.1 Each proceeding under this Agreement shall be governed by the law stated in this Article.

32.2 No proceeding shall be treated as effective for the purposes of this Agreement unless it is governed by the law stated in this Article, and the Party relying on it bears the burden of demonstrating that it was.

32.3 Where a proceeding is governed by the law stated in this Article, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

32.4 The Parties acknowledge that a proceeding which is not governed by the law stated in this Article may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

32.5 For the avoidance of doubt, nothing in this Article requires a proceeding to be governed by the law stated in this Article where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

32.6 Each proceeding under this Agreement shall be brought before the courts identified in this Article.

32.7 No proceeding shall be treated as effective for the purposes of this Agreement unless it is brought before the courts identified in this Article, and the Party relying on it bears the burden of demonstrating that it was.

32.8 Where a proceeding is brought before the courts identified in this Article, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

32.9 The Parties acknowledge that a proceeding which is not brought before the courts identified in this Article may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

32.10 For the avoidance of doubt, nothing in this Article requires a proceeding to be brought before the courts identified in this Article where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

32.11 Each proceeding under this Agreement shall be without prejudice to either Party's right to seek interim relief.

32.12 No proceeding shall be treated as effective for the purposes of this Agreement unless it is without prejudice to either Party's right to seek interim relief, and the Party relying on it bears the burden of demonstrating that it was.

32.13 Where a proceeding is without prejudice to either Party's right to seek interim relief, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

32.14 The Parties acknowledge that a proceeding which is not without prejudice to either Party's right to seek interim relief may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

32.15 For the avoidance of doubt, nothing in this Article requires a proceeding to be without prejudice to either Party's right to seek interim relief where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.



## **ARTICLE XXXIII — ENTIRE AGREEMENT**

33.1 Each representation under this Agreement shall be superseded by this Agreement save in the case of fraud.

33.2 No representation shall be treated as effective for the purposes of this Agreement unless it is superseded by this Agreement save in the case of fraud, and the Party relying on it bears the burden of demonstrating that it was.

33.3 Where a representation is superseded by this Agreement save in the case of fraud, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

33.4 The Parties acknowledge that a representation which is not superseded by this Agreement save in the case of fraud may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

33.5 For the avoidance of doubt, nothing in this Article requires a representation to be superseded by this Agreement save in the case of fraud where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

33.6 Each representation under this Agreement shall be of no effect unless recorded in this Agreement or an amendment to it.

33.7 No representation shall be treated as effective for the purposes of this Agreement unless it is of no effect unless recorded in this Agreement or an amendment to it, and the Party relying on it bears the burden of demonstrating that it was.

33.8 Where a representation is of no effect unless recorded in this Agreement or an amendment to it, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

33.9 The Parties acknowledge that a representation which is not of no effect unless recorded in this Agreement or an amendment to it may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

33.10 For the avoidance of doubt, nothing in this Article requires a representation to be of no effect unless recorded in this Agreement or an amendment to it where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

33.11 Each representation under this Agreement shall be acknowledged by each Party as not having been relied upon.

33.12 No representation shall be treated as effective for the purposes of this Agreement unless it is acknowledged by each Party as not having been relied upon, and the Party relying on it bears the burden of demonstrating that it was.

33.13 Where a representation is acknowledged by each Party as not having been relied upon, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

33.14 The Parties acknowledge that a representation which is not acknowledged by each Party as not having been relied upon may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

33.15 For the avoidance of doubt, nothing in this Article requires a representation to be acknowledged by each Party as not having been relied upon where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXXIV — SEVERANCE AND WAIVER**

34.1 Each provision under this Agreement shall be severable from the remainder of this Agreement.

34.2 No provision shall be treated as effective for the purposes of this Agreement unless it is severable from the remainder of this Agreement, and the Party relying on it bears the burden of demonstrating that it was.

34.3 Where a provision is severable from the remainder of this Agreement, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

34.4 The Parties acknowledge that a provision which is not severable from the remainder of this Agreement may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

34.5 For the avoidance of doubt, nothing in this Article requires a provision to be severable from the remainder of this Agreement where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

34.6 Each provision under this Agreement shall be not waived by any delay or omission in enforcing it.

34.7 No provision shall be treated as effective for the purposes of this Agreement unless it is not waived by any delay or omission in enforcing it, and the Party relying on it bears the burden of demonstrating that it was.

34.8 Where a provision is not waived by any delay or omission in enforcing it, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

34.9 The Parties acknowledge that a provision which is not not waived by any delay or omission in enforcing it may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

34.10 For the avoidance of doubt, nothing in this Article requires a provision to be not waived by any delay or omission in enforcing it where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

34.11 Each provision under this Agreement shall be to be construed so as to give effect to the commercial intention of the Parties.

34.12 No provision shall be treated as effective for the purposes of this Agreement unless it is to be construed so as to give effect to the commercial intention of the Parties, and the Party relying on it bears the burden of demonstrating that it was.

34.13 Where a provision is to be construed so as to give effect to the commercial intention of the Parties, the Parties shall each act reasonably and without undue delay in giving effect to it, and neither Party shall unreasonably withhold any consent required in connection with it.

34.14 The Parties acknowledge that a provision which is not to be construed so as to give effect to the commercial intention of the Parties may nonetheless be given effect by agreement in writing, but that nothing in this Article obliges either Party to do so.

34.15 For the avoidance of doubt, nothing in this Article requires a provision to be to be construed so as to give effect to the commercial intention of the Parties where the requirement would be inconsistent with any mandatory legal or regulatory obligation binding on the Party concerned; in that event the Party shall notify the other and the Parties shall agree a compliant alternative.

## **ARTICLE XXXV — EXECUTION**

35.1 This Agreement is executed by the duly authorised representatives of each Party.